

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUMC065156: STAPLES CONSTRUCTION COMPANY, INC. vs HABITAT FOR
HUMANITY, VENTURA COUNTY, INC., et al.**

07/02/2026 in Department 42

Motion to Stay Action Pending Contractual Dispute Resolution Proceedings

Motion: Plaintiff's Notice of Motion and Motion to Stay Action Pending Contractual Dispute Resolution Proceedings and, to the Extent Necessary, for Relief from Any Resulting Statutory Waiver

Tentative Ruling:

The Court is inclined to rule as follows:

The Court DENIES Defendant's Motion to Stay Pending Arbitration without prejudice because the motion was not accompanied by the required proof of service.

Discussion:

There is not sufficient evidence that Plaintiff has been provided with notice of the date for this motion.

Under California Rules of Court, rule 3.1300(c) "proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." Plaintiff failed to file a sufficient proof of service for the Motion to Stay Action. Filing proof of service is necessary to prove service was properly completed and to demonstrate to the court that the documents were delivered as required.¹

Although the Court acknowledges that Plaintiff submitted a declaration from counsel regarding service of the Motion to Stay, counsel, Evan N. Martin, merely declares that he filed and served the Motion to Stay on June 5, 2026. (Motion to Stay, Martin Decl., ¶¶ 9, 16, Ex. 4.) Specifically, Martin states only that "after identifying the issue, Staples promptly finalized this Motion, filed and served it on June 5, 2026, and included a request for relief from any resulting waiver."

This declaration does not provide the information required to establish proper service, including the identity of the person served, the date, time, and place of service, the manner of service, or the identity of the person who effected service. (See Code Civ. Proc., §§ 1011, 1013a.)

In Martin's declaration, in ¶ 9 he also declares that the Summons and Complaint were personally served on May 1, 2026. Exhibit 4 consists solely of the proof of service for the Summons and Complaint, not the Motion to Stay.

¹ The Court notes that a proper proof of service was attached to the Notice of Recorded Notice of Pendency of Action (Lis Pendens), which was filed by Plaintiff on June 11, 2026.